THUNDEROCK LOGISTICS (PVT) LTD

Versus

TOYIN TRAILERS (PTY) LTD

HIGH COURT OF ZIMBABWE
COMMERCIAL DIVISION
CHILIMBE J
HARARE 4 November 2025 & 6 March 2026

Application for rescission of judgment.

U. Saizi for applicant
N.Z. Masuku for respondent

CHILIMBE J

BACKGROUND

[1] On 4 November 2025, I dismissed this application for rescission of judgment and furnished reasons *ex tempore*. At the request of applicant, herewith the written version.

[2] I will refer to the parties as "Thunderock" (applicant), and "Toyin" (respondent). Thunderock is an entity incorporated in terms of Zimbabwean law which and offers overland freight services. Toyin is a peregrine company with its registered office at Bespoke Oxford & Glenhove, 19- 9th Street, Houghton, Rosebank, Johannesburg, South Africa. It also plies its trade in "transport and logistics".

[3] On 24 September 2024, the parties concluded a contract titled "Transport Agreement" in terms of which Thunderock undertook to provide various transportation services to Toyin. Clause 6 encapsulated the nature of the agreement stipulating that; -

> "6. The Transporter shall **at its own exclusive risk** and within the stipulated time be obliged to collect and fulfil its obligations **to collect the "Product" from the loading point and to transport the goods to the offloading point** and at all times adhere to all operational instructions, freight documentation and transport schedules that may be furnished by Toyin Trailers Pty Ltd." [for emphasis]

[4] The Transport Agreement further set out in elaborate detail, the guidelines and conditions to govern the parties` relationship. The contractual arrangements operated without incident for nearly a year with Thunderock duly executing Toyin`s instructions by ferrying various consignments. Until around March 2025, when Thunderock picked up a consignment of soya oil from Mozambique to Zambia whose delivery sparked discord between the parties.

[5] Toyin alleged that Thunderock delivered less than half the quantity of the product, and in a contaminated state too. The vehicle registered as AFJ9688 apparently delivered only 13.32 tonnes instead of 32.66 tonnes. The vehicle registered as ABZ8948 delivered only 16.98 tonnes instead of 30.68 tonnes. It is also common cause that when confronted by Toyin over the malperformance, an employee of Thunderock, Ms Bridget Mhaka, addressed on 3 April 2025, the following response via email; -

> "Subject: Apology and request for opportunity to make amends.
> Dear Logistics team
> I am writing to express my sincerest apologies for the incident that occurred yesterday in Ndola, Zambia. We understand that our actions have caused inconvenience and harm to your esteemed organisation.
> Regrettably, we were misled by some of our internal staff, who assured us that the transaction would not pose any problems. Relying on their assurances, we proceeded with the deal. However, we now realise that this was a grave mistake and take full responsibility for our actions.
> In light of this unfortunate event, we humbly request the opportunity to make amends. We propose calculating the difference caused by our actions and offering to work for your company without payment to compensate for the loss.
> We value our relationship with Toyin Company and are committed to regaining your trust. We assure you that we have learned from this experience and will take necessary measures to prevent such incidents in the future.
> Please consider our request. We look forward to the opportunity to discuss this matter further and work towards a mutually beneficial solution.
> Thank you for your attention to this matter.
> Bridget Mhaka
> Thunderock Logistics"

[6] Toyin relied heavily on this email as an unequivocal admission of liability. Thunderock distanced itself from it. The author was neither authorised to issue the undertakings, nor correct in the factual averments she expressed. Thunderock denied that the consignment had been interfered with in any manner. These contestations were set out in a letter dated 14 May 2025 addressed by Thunderock` s legal practitioners to Toyin`s own attorneys. This denial, and the date thereof are important to the disposal of this application.

THE DEFAULT JUDGMENT

[7] With the dispute unresolved, Toyin instituted proceedings on 5 June 2025 under case number HCHC 343/25. It sought payment of US$50,904.73 as damages for breach of contract under several heads. The summons were served on Thunderock on 9 June 2025. Thunderock legal practitioners of record entered appearance to defend on 18 June 2025. Following failure by Thunderock to file its plea, Toyin applied for judgment in default on 8 August 2025.Judgment was entered ten days later on 18 August 2025.

[8] Thunderock filed an application for rescission of that judgment on 28 August 2025 in terms of r 15 (1) and (2) of the Commercial Court Rules. The application was premised on the following; -

Explanation for the default.

[9] Ms Privilege Saizi (whom I presume from the papers before me to be but a namesake of Thunderock` s counsel), deposed to the founding affidavit on behalf of Thunderock. Her explanation for default was two-pronged; -firstly-that the legal practitioner handling the matter at the time, Mr Karima-missed the *dies* within which to file the plea because he misunderstood the applicable rules.

[10] Secondly, the deponent averred that she was precluded from furnishing her legal practitioners with full instructions because she could not obtain the requisite information from her co-director as he was, at the time, incarcerated *incommunicado* in Zambia. The arrest was in connection with the alleged diminution of Toyin`s product. The founding affidavit was deposed to on 28 August 2025-well after the 14 May 2025 email denying Ms Bridget Mhaka`s admissions.

[11] Mr *Saizi* filed a supporting affidavit explaining the default. He stated that a junior colleague at the firm, Mr Karima had wrongly presumed that Toyin`s legal practitioners were obliged to issue a notice to plead in terms of r 39 of the High Court Rules SI 202 of 2021 ("the High Court Rules"). In fact, Mr Karima had, on 13 August 2025, addressed a letter expressing such view to MawereSibanda Commercial Lawyers, Toyin`s legal practitioners.

[12] Mr *Saizi* conceded that r 39 of the High Court Rules was inapplicable to the filing of a plea in the Commercial Division of the High Court. The correct provision was r 12 of the High Court (Commercial Division) Rules SI 123 of 2020 ("the Commercial Court Rules").Mr *Saizi* further stated that as the principal of Thunderock`s firm of legal practitioners, he had engaged his junior colleague and extracted all the relevant facts regarding the failure to file the plea. In that regard, Mr *Saizi* contended that he was properly placed to file the supporting affidavit in place of Mr Karima.

[13] Toyin dismissed these explanations as a demonstration of inexcusable breach of duty of care and professional standards by a legal practitioner. Further, Mr *Saizi*`s affidavit was, according to Mr *Masuku*, (counsel for Toyin) -hearsay and thus inadmissible.

The bona fides of the application and prospects of success on the merits.

[14] Ms Privilege Saizi disputed the allegations of breach of the Transport Agreement as alleged. She contended that to begin with, there was no evidence that the seals on the trucks had been tampered with -in Mozambique or Zambia. Secondly, no export report confirming the shrinkage or contamination had been filed. Thirdly, that no quality control certificates were produced to ascertain that the cargo was free from contamination on upliftment.

[15] Finally, as noted earlier, Ms Saizi dismissed the concessions by Ms Bridget Mhaka as unauthorised, misinformed and therefore invalid. Neither Mr Langford Kamanga, the driver-director, nor Mr Victor Marere the second driver, -the two sojourners to Zambia- deposed to supporting affidavits. Toyin, on the other hand, insisted that Ms Mhaka`s admissions of liability and undertakings to compensate were binding on Thunderock. Mr *Masuku* further

argued that Thunderock was also liable in terms of the carrier`s strict liability under the praetor`s edict.

THE LAW ON APPLICATIONS FOR RESCISSION OF JUDGMENT

[16] I will briefly set out the well-established legal principles governing the determination of applications for rescission of judgment. Above all else, an applicant must demonstrate good and sufficient cause as set out in r 15 (2) which states that; -

> **15 Setting aside of default judgment**
> 15 (2); -
> (2) In considering whether to rescind the judgment under this, rule the court shall have regard to whether the aggrieved party has—
> (*a*) applied to the court within the period specified under sub rule (1);
> **(*b*) given good and sufficient reasons for failing to file a plea;**
> **(*c*) demonstrated reasonable and good prospects of success on the merits;**
> (*d*) filed a draft plea, summary of evidence and, where applicable, the documentary evidence relied upon in support of his or her or its defence; and
> (*e*) provided security for costs in favour of the judgment creditor as may be prescribed by the registrar.

[17] Both counsel correctly articulated the said requirements and referred me to the relevant authorities including those discussed in *Stockil* v *Griffiths* 1992 (1) ZLR 172(S) where GUBBAY CJ held as follows at 173D-F: -

> "The factors which a court will take into account in determining whether an applicant for rescission has discharged the onus of proving "good and sufficient cause", as required to be shown by Rule 63 of the High Court of Zimbabwe Rules 1971, are well established. They have been discussed and applied in many decided cases in this country. See for instance, *Barclays Bank of Zimbabwe Ltd v CC International (Pvt) Ltd* S-16-86(not reported); *Roland and Another v McDonnell* 1986 (2) ZLR 216(S) at 226E-H; *Songore v Olivine Industries (Pvt) Ltd* 1988(2) ZLR 210 (S) at 211C-F. They are: (i) the reasonableness of the applicant's explanation for the default ;(ii) the bona

> fides of the application to rescind the judgement; and (iii) the bona fides of the defence on the merits of the case which carries some prospect of success. These factors must be considered not only individually but in conjunction with one another and with the application as a whole."

[18] Further, an applicant must win the court`s confidence by demonstrating the best of candour. Where the default was occasioned by a legal practitioner (as is quite often the case), then an explanation must be tendered by the practitioner concerned. It is an established principle in our jurisdiction that where such are deemed unpardonable, the errors or shortcomings of a legal practitioner will be visited upon the litigant-client. This position was set out in *Saloojee & Another NNO* v *Minister of Community Development* 1952(2) SA135(A) where it was held at 141C that: -

> "There is a limit beyond which a litigant cannot escape the results of his attorney's lack of diligence or the insufficiency of the explanation tendered. To hold otherwise might have a disastrous effect upon the observance of the rules of court. Considerations *ad misericordium* should not be allowed to become an invitation to laxity."

[19] This approach has been consistently followed in evaluating the nature and effect of a legal practitioner`s default. (see *Khuzwayo v Assistant Master of the High Court & Ors*, 2007 (1) ZLR 34,(H);*Viking Woodwork (Pvt) Ltd v Blue Bells Enterprises (Pvt0 Ltd supra at 254D; Tshivhase Royal Council & Anor v Tshivhase & Anor, Tshivhase & Anor v Tshivhase & Anor 1992 (4) SA 852(A) at 859E-F*. *Friendship v Dick* HH 128-13, *Diocese of Harare v The Church of the Province for Central Africa* SC-9-10 and *Thokozile Zinondo v CAFCA Limited* SC 64-17.

[20] The onus of demonstrating good and sufficient causes remains on the applicant. In *Makoni v CBZ* SC 47-20 and *V Saitis & Co (Pvt) Ltd v Fenlake (Pvt) Ltd (supra)* the applicable test was discussed. On prosects of success, the court dealing with an application for rescission of judgment does not delve into the merits with the rigour of a trial court. A

defence must "*be credible ex facie*[1]*".* In the end, the court must be satisfied that applicant established good and sufficient cause to obtain the relief sought.

APPLICATION OF THE LAW TO THE FACTS

On the explanation for the default.

[21] It is not in dispute that Mr Karima`s understanding of the rules regulating the filing of a plea in the Commercial Division was widely off the mark. Mr *Masuku* described that error as a gross dereliction inconsistent with the professional standard and obligation of a legal practitioner. It was, according to counsel, a fundamental misstep rather than mere inadvertence.

[22] Whether Mr Karima`s misinterpretation of rules can be adjudged as a gross, unpardonable infraction depends on the objective and subjective factors that come into play as discussed below. What is indisputable though, is that the courts demand a consistently high standard from legal practitioners in the discharge of their dual duty to court and client. Misreading rules of court by a legal practitioner offends such standard.

[23] Yet despite such strict standards, courts may, depending on circumstances, extend a reprieve to those litigants undone by the derelict of errant legal practitioners. It is important, in such evaluation, for the court to understand, not just the infraction, but the offending legal practitioner`s reasons for default. Herein, as argued by Mr *Masuku*, Mr Karima, was not confronted with an inordinately complex legal step to address. From an objective perspective, a simple task awaited him. Yet he faltered and the question again, is- but why?

[24] I turn to Mr *Saizi*`s supporting affidavit. The issue of its alleged inadmissibility on the grounds of hearsay need not detain us. The affidavit was tendered- not during a trial- but application for rescission of judgment. The key issue arising from Mr *Saizi*`s affidavit was that Thunderock` s legal practitioners failed to file a plea within the prescribed period. That fact was verifiable from the record and IECMS case portal. I accept that the affidavit was

[1] Per CHITAKUNYE J (as he then was) at page 6 of *Makoni v CBZ Bank Ltd* HH 357-16; see also *Dr Walter Mangezi v Dr Tonderai Irvine Tipere Kasu* HH 132-24

relevant for purposes of disposing of this application s ee the remarks of MAKARAU JP (as she then was) on admissibility of such affidavits for limited purposes in *Jean Hiltunen v Osmo Hiltunen* HH 99-08.

[25] That finding notwithstanding, Mr *Saizi*`s proxy-type explanation fell short of tendering a proper answer. It lacked, so to speak, the subjectivity necessary to aid the court in determining whether to pardon or punish the wrong. I do not doubt the sincerity behind the compunction expressed by Mr *Saizi*. But it only extended to the breach rather than the reasons behind its commission. Such could only issue from the repentant bosom of Mr Karima himself.

[26] Additionally, no reason was furnished as to why Mr Karima`s own account was not availed to the court. After all, he had been rightly entrusted with the responsibility to manage the client`s case. In any event, two reasons were extended for the default. The second being Ms Saizi`s inability to issue fuller instructions to her legal practitioners because she could not extract critical information from her colleagues in Zambia.

[27] Recurrent inconsistencies in this explanation betrayed the deponent`s lack of probity and candour with the court. I set out the reasons for this conclusion hereunder; -

i. *Firstly*, based on Ms Saizi`s explanation, Thunderock' s legal practitioners had no firm defence at hand at the stage that they entered appearance to defence. The appearance to defend concerned was thus tendered for the mere purpose of buying time. Such approach is not encouraged by the courts. In fact, it forms one of the grounds upon which a party may rightfully approach a court for summary judgment.

ii. *Secondly* and on the same point, in terms of r 12 (1), 18 June 2025 marked the last date for Thunderock to file its plea. Which means that even if Mr Karima had correctly read the rules, Ms Saizi would still not have been in a position to issue full instructions. Meaning that the plea may not have been filed on time, plea, going by her explanation.

iii. *Thirdly*, a further difficulty issues from Ms Saizi`s explanation. The incident which triggered the parties` fallout allegedly had occurred as far back as March 2025. In April 2015, Toyin fully communicated its misgivings to Thunderock in April 2025.Moreso, Messrs Langford Kamanga and Victor Marere, Thunderock`s drivers (and one a director) had been arrested and incarcerated in Zambia. Surely, these were grave developments which warranted urgent interventions by Ms Saizi to gather as much facts about the matter as possible?

iv. *Fourthly*, the facts contradict Ms Saizi`s contention that bereft of information, she could not issue full instructions fully instruct her legal practioners in August 2025. On 14 April 2025, Thunderock' s legal practitioners had firmly disputed the breach allegations raised by Toyin. How did that become possible in the absence of full information on the matter from Zambia? Possibly Ms Saizi required further information or instructions beyond what she had at hand. But what information exactly and why was the court not taken into confidence?

v. *Fifthly,* the alleged default incident occurred in March, engagements in April-May and litigation in June of 2025. Default judgment was only applied for in August of 2025. So, between March and August of 2025, Thunderock was still in the dark about the circumstances surrounding the alleged breach? That position is not tenable. Discounting Mr Karima`s misconception over the rules, no other explanation was tendered to explain the inactivity between June and August of 2025.

[28] This last aspect becomes particularly important. It colours Thunderock' s inactivity during that intervening period as wilful abstention. On the basis of the above, I am not persuaded that Thunderock accounted for the default to the standard prescribed in the authorities.

On the bona fides of the application and defence and prospects of success.

[29] I will sidestep the arguments on Ms Mhaka`s email because there is a more fundamental aspect of the claim and defence which is dispositive of the matter. On the merits, Thunderock strenuously disputed interfering with the load in breach of contract. The cargo was delivered

intact, argued Ms Saizi. She turned her guns onto Toyin arguing that it had not confirmed the status of the cargo at upliftment in Mozambique.

[27] The claim against Thunderock was predicated on clause 6 of the agreement. This clause, read with other provisions of the contract placed a number of obligations upon Thunderock. Clause 6 essentially restated the carrier`s common law strict liability under the praetor`s edict. Mr *Masuku* referred to the following observation by PATEL J (as he then was) at page 5 in *Modzone Enterprises v Transtech Freight Zimbabwe (Pvt) Ltd* HH 65 – 07; -

> "The carrier's liability commences from the moment he takes delivery of the goods and continues until he has discharged his contractual obligation, viz. to deliver the goods to the consignee at the agreed destination. Where the goods are lost or destroyed, the measure of damages payable by the carrier will normally be the market value of the goods at their destination."

[28] See also *Independence Mining (Pvt) Ltd v Fawcett Security Operations (Pvt) Ltd* 1994 (2) ZLR 222 (H). Herein, the onus lay on Thunderock to at least demonstrate the prospects of proving that it collected and delivered the cargo intact. Despite its fervent protestations, there was no suggestion from Thunderock that the claim was malicious or fictitious. Thunderock`s defence raised a number of questions instead of offering the requisite answers to the strict liability claim brought against it.

[29] The defence neither focussed on, nor addressed the parties` respective rights and obligations under the Transport Agreement. Added to this, the lack of specific details as regards what exactly transpired in Zambia further weakened Thunderock' s defence.

DISPOSITION

[29] I am not satisfied that the applicant managed to meet the good and sufficient test necessary to warrant revisiting the judgment of this court in HCHC343/25. The application cannot succeed. Toyin made a half-hearted prayer for punitive costs contending that the application was an abuse of court process. The contentions were unsustainable because the factors governing the grant of exceptional costs were not proven.

Due to the aforegoing reasons, I accordingly ordered that; -

1. The application for rescission of judgment be dismissed with costs on an ordinary scale.

Saizi Law Chambers-applicant's legal practitioners
MawereSibanda Commercial Lawyers-respondent's legal practitioners

[CHILIMBE J__6/3/26]